

IN THE SENATE

SENATE BILL NO. 1306

BY RESOURCES AND ENVIRONMENT COMMITTEE

AN ACT

RELATING TO IRRIGATION DISTRICTS; AMENDING SECTION 43-1104, IDAHO CODE, TO  
REVISE PROVISIONS REGARDING IRRIGATION DISTRICTS' BOARD OF DIRECTORS  
HEARING PETITIONS; AMENDING SECTION 43-1107, IDAHO CODE, TO REVISE PRO-  
VISIONS REGARDING COSTS; AND DECLARING AN EMERGENCY AND PROVIDING AN  
EFFECTIVE DATE.

Be It Enacted by the Legislature of the State of Idaho:

SECTION 1. That Section 43-1104, Idaho Code, be, and the same is hereby  
amended to read as follows:

43-1104. HEARING ON PETITION -- ORDER OF EXCLUSION. (1) The board of  
directors of the irrigation district may conduct its own investigation of  
the facts alleged in the petition and, by resolution duly adopted, which may  
address the allegations of several petitions, accept the facts as alleged  
and determine that no hearing is required prior to granting the petition or  
petitions for exclusion. If the allegations are not thus accepted such pe-  
tion must be heard by the board of directors of such irrigation district  
within one hundred fifty (150) days of filing of the petition. If no hearing  
is held within one hundred fifty (150) days, the land described in the peti-  
tion is excluded from the district. If a hearing is ordered, the petitioner  
or petitioners must establish by competent evidence the allegations of the  
petition, and the chairman or presiding member of the board is hereby empow-  
ered to administer oaths for the purpose of the hearing. a petition. Within  
one hundred fifty (150) days of receiving a petition, the board shall adopt a  
resolution that addresses one (1) or more petitions and:

(a) Accepts the alleged facts and grants the petition or petitions as  
requested; or

(b) Rejects or otherwise disputes the alleged facts and denies the pe-  
tition or petitions as requested. In such cases, the resolution shall  
be accompanied by the board's reasoned explanation for such decision,  
and the resolution and explanation shall be physically mailed to the pe-  
titioner.

(2) (a) If a petitioner disagrees with the board's decision, the peti-  
tioner may request a hearing before the board to review the decision.  
Such request must be made in writing by the petitioner within forty-five  
(45) days of the date the board's decision was mailed to the petitioner.  
The board's adopted resolution shall become a final decision after the  
forty-five (45) day period has ended.

(b) If a hearing is requested, the board shall:

(i) Set a date for the hearing that is no later than sixty (60)  
days from the date the board received the petitioner's written re-  
quest; and

(ii) Notify the petitioner of the date and time of the hearing.

(c) At the hearing, the petitioner or petitioners shall establish by competent evidence the allegations of the petition, and the chair or presiding member of the board is hereby empowered to administer oaths for the purpose of the hearing.

(d) A hearing shall not be held if the board issues an order excluding the land described in the petition from the district prior to the date of the hearing.

(3) ~~When (1) the board of directors accepts the facts as alleged without a hearing, or (2) when the allegations of the petition are established at a hearing, or (3) the land has been excluded by reason of the board's failure to hold a hearing within one hundred fifty (150) days of filing of the petition, the board must~~ the board shall make an order forthwith changing the boundaries of such district so as to exclude the lands described in the petition ~~which~~ that the proof has established to be entitled to exclusion, and thereafter the lands so excluded shall not form a part of the irrigation district for any purpose except as provided in subsection (b) of section 43-1102, Idaho Code; provided however, that the lands so ordered excluded shall not be relieved of their obligation to pay their proportionate share of any existing bonded or contract indebtedness of the irrigation district, and the lands shall remain a part of the irrigation district for the purpose of discharging the existing bonded or contract indebtedness.

~~No hearing shall be held when, prior to the date set for the hearing, the board issues an order excluding the land described in the petition from the district.~~

(4) When land is excluded from the district pursuant to a petition filed on or before December 1 in any calendar year, assessments against the land for any calendar year subsequent to the year in which the petition was filed shall not be valid and no lien for any such attempted assessment shall attach under section 43-706, Idaho Code. Petitioners are, however, required to pay any outstanding assessments levied the calendar year and prior in which the petition is filed and said lien shall attach until said assessments are paid.

SECTION 2. That Section 43-1107, Idaho Code, be, and the same is hereby amended to read as follows:

43-1107. COSTS. The costs of excluding any land as provided in this chapter shall be borne by the petitioner or petitioners except in cases where:

(1) The lands excluded are found to be too high or not susceptible of irrigation from the water system of the district without pumping by the landowner and the petitioner or previous owners of the land have paid the assessments of the district against that land; or

(2) The exclusion is requested ~~under~~ pursuant to subsection (a)3. or (a)4. of section 43-1102, Idaho Code, and for the five (5) irrigation seasons preceding the filing of the petition: (a) there has been no pipe, ditch, or other delivery system between the land and the assigned delivery point on the district's irrigation system, and (b) the petitioner or previous owners of the land have paid the assessments of the district against that land. If the petitioner is required to pay the costs of exclusion hearing proceedings, the board may require a deposit of the estimated costs before ~~they~~ the board will hear the petition and the ~~one hundred fifty (150)~~ sixty

1 (60) day period in which the petition must be heard as provided in section  
2 43-1104, Idaho Code, shall not begin to run until the estimated costs have  
3 been deposited; provided however, that, in case of a successful appeal by  
4 the petitioner, the costs taxed by the district to the petitioner or peti-  
5 tioners whose lands are excluded by the district court shall be borne by the  
6 irrigation district. If the actual costs of the exclusion proceedings are  
7 less than the amount deposited by the petitioner, the excess deposit shall  
8 be credited against any amounts ~~which~~ that are to be paid by the petitioner  
9 prior to entry of the order of exclusion, and the balance, if any, shall be  
10 refunded to the petitioner within fourteen (14) days after the hearing; if  
11 the actual costs of the exclusion proceedings are more than the deposit, the  
12 difference shall be paid to the district by the petitioner within fourteen  
13 (14) days after receipt of a statement to that effect from the district, and  
14 the board shall not be required to enter an order of exclusion until the dif-  
15 ference is paid.

16 SECTION 3. An emergency existing therefor, which emergency is hereby  
17 declared to exist, this act shall be in full force and effect on and after  
18 July 1, 2026.